The But-for Test in the Law of Tort

An introductory guide to factual causation in negligence in England and Wales. With a worked case, explained terms and practice questions.

1. A mistake does not answer every question

A driver fails to look carefully. A doctor fails to examine a patient. These may be breaches of a duty of care. But a claimant seeking damages must also connect the breach to the particular harm claimed. Saying that someone behaved carelessly does not yet explain what that carelessness changed.

Causation in fact asks whether the breach made the relevant difference to the outcome. **Legal causation** and other limits address whether the law treats the resulting loss as the defendant's responsibility. This guide concentrates on the first question.

> **The central question:** If the defendant had complied with the duty of care, would the claimant still have suffered the same damage? **No:** the ordinary but-for test is satisfied. **Yes:** that test is not satisfied. [1]

2. What does “but for” mean?

Here, **but for** means **without**. The question is not whether harm followed the breach in time. It is whether the same harm would have occurred without that breach. A **counterfactual** is this imagined alternative to what actually happened.

Keep the surrounding facts the same as far as the comparison allows. Change the identified breach into the conduct required by the duty. Do not imagine a completely different world in which nobody becomes ill and every accident disappears.

3. Two invented examples

A: A shop negligently leaves water on its floor. Lina slips on that water and breaks her wrist. Assume that a dry floor would have prevented the fall. The wet floor passes the but-for test. **B:** A shop leaves water near its entrance, but Lina falls upstairs because her shoelace catches on her other shoe. Assume the water played no part. Its presence does not establish causation of this fall.

Claimant: person bringing the claim. **Defendant:** person or body sued. **Breach:** failure to meet the required standard of care. **Damage:** the injury or loss; **damages:** monetary compensation.

Applying the test step by step

4. Identify the damage precisely

Write down the particular injury or loss in issue: a broken wrist, death at a particular time, or an additional repair cost. Avoid a vague question such as “Did anything bad happen?” Different losses may require different comparisons.

Invented example: a delivery driver damages a sound bicycle wheel. The relevant loss is the cost of repairing that wheel. If the bicycle already had a broken lamp, the wheel collision does not automatically explain the cost of replacing the lamp.

5. Replace the breach with proper conduct

For careless driving, imagine the care the driver should have taken. For a failure to act, imagine the action the duty required. This is especially important in medical cases: do not remove the patient's underlying illness when asking what proper examination and treatment would have achieved.

> **A useful writing pattern:** The alleged breach was ____. The damage claimed is ____. If the defendant had acted with reasonable care, ____ would have happened. Therefore, the same damage would / would not have occurred, because ____.

6. Support the alternative with evidence

A thought experiment is not permission to guess. The comparison must fit the evidence. Witness accounts, medical opinion, records and physical evidence may help a court decide what would have happened. “Perhaps a better outcome was possible” does not by itself prove the ordinary causal case.

Invented example: a mechanic forgets a required brake repair. The customer later crashes. An engineering report shows that working brakes would have stopped the car before impact. That supports causation. If the crash instead resulted from an unavoidable falling rock and the brakes made no difference, the conclusion changes.

7. Avoid three shortcuts

After does not mean because of: timing alone is insufficient. **Carelessness does not prove causation:** examine what the breach changed. **Passing the test does not settle the whole claim:** duty, breach, legal limits and the recoverable loss still require consideration. [2]

The ordinary test is the starting point. Some complex cases, including multiple independently sufficient causes, require a different analysis. This introductory guide does not treat every failure of the but-for test as an automatic end to every possible claim. [1]

What Barnett actually decided

Barnett v Chelsea and Kensington Hospital Management Committee [1969] 1 QB 428

A night-watchman attended hospital after vomiting following tea. A doctor, contacted by telephone, told him to go home and consult his own doctor. He died about five hours later from arsenic poisoning. His widow sued. [1]

8. Separate breach from causation

The failure to examine him was negligent. However, the evidence showed that proper examination and treatment would not have prevented his death. The widow therefore failed to prove that the breach caused the death. [1]

> **Who won, and why?** The hospital management committee won. The claim failed on factual causation: the same death would have occurred even with proper care. This did not make the doctor's failure acceptable. It meant that this failure did not cause the death claimed for. [1]

Read the result carefully. It does not mean that refusing to examine a sick patient is generally lawful, or that hospitals never owe duties to people seeking help. The issue here is the missing connection between the negligent omission and this death.

9. Who must prove the connection?

In the ordinary negligence claim, the claimant must prove factual causation on the **balance of probabilities**: the causal account must be more likely than not. This is a civil standard, not the criminal standard of proof beyond reasonable doubt. Barnett illustrates how a claimant can establish a breach yet fail to establish causation. [1]

Invented comparison: if reliable medical evidence instead established that timely treatment would probably have prevented the death, the counterfactual would favour the claimant. That is a changed hypothetical, not the finding in Barnett.

10. A short model answer

The relevant breach was the failure to examine and treat the patient properly; the damage in issue was his death. Ask whether proper care would have prevented that death. The medical evidence supported the conclusion that it would not. The ordinary but-for test was therefore not satisfied, and the hospital was not liable for causing that death.

Case name: **Barnett**, not “Burnett”. The year 1969 in the reference identifies the law-report volume. No speculation about lack of beds or the doctor's motives is needed to explain the causal decision.

Check your understanding

1. What does “but for” mean here?
Answer: Without the identified breach. Ask what would have happened if the defendant had complied with the duty.

2. The same damage would have occurred with proper care. Is the ordinary test satisfied?
Answer: No. The breach made no difference to that damage under the ordinary test.

3. A waiter drops a heavy tray on Mei's foot. Without the drop, she would not have been injured. What follows?
Answer: The but-for test is satisfied for that injury. The remaining requirements of liability must still be considered.

4. An electrician misses an inspection. A storm destroys the building; the evidence shows the inspection would have changed nothing. Did the omission cause that destruction?
Answer: Not under the ordinary but-for test on these assumed facts. Identify what proper inspection would actually have prevented.

5. Who won Barnett, and why?
Answer: The hospital management committee. Proper care would not have prevented the death, so factual causation was not proved.

6. Does the claimant ordinarily need scientific certainty?
Answer: No. The civil standard is the balance of probabilities, meaning more likely than not.

7. Does passing the test automatically establish a successful negligence claim?
Answer: No. The other requirements and limits remain. The test addresses factual causation, not every issue of liability.

Primary sources

The practice examples are invented. Legal sources checked 19 October 2026. This guide concerns England and Wales.

[1] *Davies v Bridgend County Borough Council* [2024] UKSC 15, paras 56-58 and 80-81: the ordinary test, the Supreme Court's account of *Barnett*, and limitations. Read judgment

[2] *Armstead v Royal & Sun Alliance Insurance Co Ltd* [2024] UKSC 6, paras 23-26: factual causation and legal limits on recoverable loss. Read judgment